

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 857

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY; REPEALING SECTION 32-717A, IDAHO CODE, RELATING TO PARENTS' ACCESS TO RECORDS AND INFORMATION; AMENDING CHAPTER 7, TITLE 32, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 32-717A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PARENTS' ACCESS TO RECORDS AND INFORMATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [32-717A](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 7, Title 32, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 32-717A, Idaho Code, and to read as follows:

32-717A. PARENTS' ACCESS TO RECORDS AND INFORMATION. (1) Consistent with section 32-1015, Idaho Code, and notwithstanding any other provisions of law, each parent shall have equal access to all records relating to the parent's minor child, including medical, educational, childcare, law enforcement, and court records, regardless of custodial status. Upon written request, a records custodian shall provide copies within fourteen (14) calendar days unless a shorter period is required by law.

(2) Access may be restricted only by court order with written findings that the restriction is necessary to prevent substantial harm to the child. Nothing in this section shall require disclosure in violation of federal law.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.